

SUPREME COURT OF THE STATE OF NEW YORK
COUNTY OF KINGS-----X
REBECCA EDELSTEIN and JANCAIRO ANDUJAR
Plaintiff,**SUMMONS WITH
VERIFIED COMPLAINT**

-against-

Index No.:
Dated Purchased:THE CITY OF NEW YORK, NEW YORK CITY
POLICE DEPARTMENT, POLICE OFFICER
DANIEL A MARTIN, SHIELD # 16213,
INDIVIDUALLY AND AS A POLICE OFFICER,
POLICE OFFICER PEDRO RODRIGUEZ, SHIELD#
28987, INDIVIDUALLY AND AS A POLICE
OFFICER, and POLICE OFFICER DENNIS
HOE, SHIELD # 3915, INDIVIDUALLY AND AS A
POLICE OFFICER,Plaintiffs designate Kings
County as the place of trial.
The basis of the venue is place
where the cause of action arose:

Defendants.

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To the above named Defendant(s):

YOU ARE HEREBY SUMMONED to answer the complaint in this action and to serve a copy of your answer, or, if the complaint is not served with this summons, to serve a notice of appearance, on the Plaintiffs' Attorney with twenty (20) days after the service of this summons, exclusive of the day of service, (30) days after the service is complete, if the summons is not personally delivered to you within the State of New York; and in case of your failure to appear or answer, judgment will be taken against you by default for the relief demanded in the complaint.

Dated: New York, New York
This 4th day of July, 2017EMDIN & RUSSELL, LLP.
Jeffrey L. Emdin, Esq.,

Attorneys for Plaintiffs
499 Seventh Avenue, Floor 12N
New York, New York 10018
(212) 683-3995

Defendants address:

City of New York
c/o Corporation Counsel,
City of New York
100 Church Street
New York, New York 10007

The New York City Police Department
1 Police Plaza
New York, New York 10038

Police Officer Daniel A Martin,
Shield # 16213
c/o 72nd pct.

Police Officer Pedro Rodriguez
Shield # 28987
c/o 72nd pct.

Police Officer Hoe
Shield # 3915
c/o 72nd pct.

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HOE, SHIELD # 3915, INDIVIDUALLY AND AS A
POLICE OFFICER,

Defendants.

-----X

The plaintiffs, Rebecca Edelstein and Jancairo Andujar, by their attorneys, Emdin
& Russell, LLP complaining of the defendants, respectfully shows to this court and alleges:

1. Upon information and belief that at all times hereinafter mentioned, the defendant, The City of New York, hereinafter referred to as the "City", was, and still is, a municipal corporation duly organized and existing under, and by virtue of, the laws of the State of New York.
2. Upon information and belief at all times hereinafter mentioned, the defendant, the City of New York, i.e. "City", by and through its' agents, servants and/or employees, operated, maintained and controlled the New York City Police Department, hereinafter referred to as "NYPD", including all the police officers therein.
3. Upon information and belief, at all times hereinafter mentioned, and on the 14th

day of July, 2016, Police Officer Daniel A Martin, hereinafter referred to as “Martin” was employed as a Police Officer by the “City” and/or “NYPD” and assigned to the 72nd pct., and at all relevant times set forth below acted in the capacity of a police officer. Upon information and belief his shield # is 16213.

4. Upon information and belief at all times hereinafter mentioned and on the 14th day of July, 2016 “Martin”, was acting within the scope of his employment as a police officer and under the direction of the “City” as their agent, servant and/or employee.

5. Upon information and belief, at all times hereinafter mentioned, and on the 14th day of July, 2016, Police Officer Pedro Rodriguez, hereinafter referred to as “Rodriguez” was employed as a Police Officer by the “City” and/or “NYPD” and assigned to the 72nd pct., his shield number is 28987, and at all relevant times set forth below acted in the capacity of a police officer.

6. Upon information and belief at all times hereinafter mentioned and on the 14th day of July, 2016, “Rodriguez” was acting within the scope of his employment as a police officer and under the direction of the “City” as their agent, servant and/or employee.

7. Upon information and belief, at all times hereinafter mentioned, and on the 14th day of July, 2016, Police Officer Hoe, hereinafter referred to as “Hoe” was employed as a Police Officer by the “City” and/or “NYPD” and assigned to the 72nd pct., and at all relevant times set forth below acted in the capacity of a police officer. Upon information and belief his shield # is 3915.

8. Upon information and belief at all times hereinafter mentioned and on the 14th day of July, 2016, “Hoe”, was acting within the scope of his employment as a police officer and

under the direction of the “City” as their agent, servant and/or servant.

9. Upon information and belief, on July 14, 2016, Martin, Rodriguez and/or Hoe, were acting under and required to follow the New York City Police Patrol Guidelines and /or its’ Interim and/or Operational Orders.

10. On the 14th day of July, 2016, plaintiff, Rebecca Edelstein, hereinafter referred to as “Edelstein” was a resident of the State of New York, County of Kings.

11. On the 14th day of July, 2016, plaintiff, Jancairo Andujar, hereinafter referred to as “Andujar” was a resident of the State of New York, County of Kings.

12. That on July 14, 2016 at approximately 2:30 a.m. the plaintiffs, Edelstein and Cairo, hereinafter jointly referred to as “the plaintiffs”, were lawfully inside Edelstein’s vehicle, a 2015 Jeep Cherokee, which was stopped in the vicinity of 509 51st Street, Brooklyn, New York hereinafter referred to as “the location”.

13. At that time, place, and location Edelstein’s vehicle was parked across the street from a deli/bodega. From their car the plaintiffs observed several police officers conversing with another individual in front of the bodega, after which the officers went back to their car.

14. The officer(s) looked in the direction of the plaintiff’s vehicle, and Rodriguez called out to them and said “what are you smoking, it better not be marijuana”. Andujar replied that he was smoking a cigarette.

15. Shortly thereafter Edelstein turned on the car’s engine to leave, but was blocked by the officers’ vehicles who boxed in Edelstein’s car and prevented her from leaving. Rodriguez approached Edelstein and demanded her license and registration despite the fact that she had not committed any traffic infraction or any crime whatsoever. However, Rodriguez changed his

mind and said “fuck it, just get out of the car”. Edelstein complied.

16. Upon information and belief Hoe and Martin also participated in the stop and they together with unknown other officers surrounded the car.

17. Upon information and belief Hoe pulled Andujar from the vehicle, placed him in handcuffs and removed him to an unmarked police car.

18. Edelstein asked why Andujar was being arrested. Hoe told her that they were just checking him for warrants.

19. Edelstein was upset at the police action because neither she, nor Andujar had committed any crime. Rodriguez, nevertheless, threatened Edelstein, telling her to come clean and tell him what they would find in the car or it will be worse; telling her “ I know I will find something”.

20. Both Rodriguez and Hoe entered Edelstein’s car without a warrant and without her permission or consent, and began to search the car.

21. The defendants went inside Edelstein closed school bag which was on the backseat of the car and removed a police placard from her bag.

22. Rodriguez grabbed Edelstein, twisted her arms and placed her in handcuffs. He ignored Edelstein’s complaints that the handcuffs were too tight and painful.

23. Meanwhile numerous police officers were searching the vehicle, opening the console, trunk, glove box and door panel

24. Upon information and belief, officers, including Martin and Hoe falsely, claimed that they observed Marijuana in a ziplock bag and a gravity knife in plain view inside the vehicle, i.e. on top of the seat in which Andujar had been seated.

25. Both plaintiffs were arrested and transported to the 72nd pct.

26. At the 72nd pct. Rodriguez told Andujar that weed was found in the glove compartment box and wanted him to admit that it was his.

27. Rodriguez also approached Edelstein, while she was in custody at the 72nd pct., stating “what’s up with the weed... I know it’s your boyfriend’s”. “You like dating criminals?” When Edelstein asked him what makes him a criminal, Rodriguez told her “ I guarantee, I can pull up a rap sheet for days”. ‘no Spanish kid that age carries that kind of money”

28. Later Rodriguez and a second officer asked Edelstein for her social media account. At this point Edelstein was crying and the officers told her “don’t worry a pretty, little rich girl like you doesn’t need to cry, daddy will come fix this mess”.

29. When Edelstein continued crying over her treatment, she was threatened that “if you don’t stop crying we will take you to the hospital”.

30. Rodriguez also told Andujar “don’t worry about your rich girlfriend, she’ll get out and then bail you out”.

31. Another officer, identity presently unknown, repeatedly flirted with Edelstein. When he was out of uniform he returned to her cell and told her “ you’re a pretty one.. anything you want let me know” That individual had a shaved head and a sleeve of tattoos on his arms.

32. Andujar was transported from the 72nd pct. to the Red Hook Courthouse and then back to the 72nd precinct. Eventually he was taken in handcuffs to Central Booking where he was held until he was arraigned on July 14, 2016 at approximately 11:50 p.m..

33. Edelstein was held in custody at the 72nd pct., until she was transported to Central Booking. Edelstein was held in custody until her arraignment on July 14, 2016 at approximately

11:20 .m. when she was released on her own recognizance.

34. Edelstein was denied water when she requested it while being held in custody and the officers mocked her by making faces. Andujar was also denied food and water while being held in custody.

35. Upon information and belief the defendant officers conspired to bring false charges against the plaintiffs and made false statements to members of the Kings County District Attorney's Office and submitted false paperwork.

36. Upon information and belief Defendant Martin informed the Kings County District Attorney's Office and signed a false complaint or accusatory instrument charging Edelstein with criminal possession of a forged instrument in the third degree, claiming that the placard for which Edelstein was charged, was on the floorboard inside Edelstein's vehicle. Said statements were contained within docket number 2016KN041514 which also falsely accused Edelstein of double parking her car.

37. Upon information and belief Defendant Martin informed the Kings County District Attorneys Office that Andujar was in possession of marijuana in that said marijuana was on the floorboard of the seat where Andujar was seated. Martin further falsely stated that he observed defendant Hoe find a gravity knife from the seat where Andujar was seated. These false statements were made within docket number 2016kn041523.

38. The aforementioned statements were made while acting in concert, to prosecute the plaintiffs for crimes that they did not commit and/or for evidence found during an illegal search.

39. Plaintiff Edelstein hired legal counsel to defend her against the false charges filed

against her, and was compelled to appear in court on numerous occasions

40. Plaintiff Edelstein, by and through her attorney file a motion in Criminal Court Kings County seeking to dismiss the criminal complaint against Edelstein on the basis that the complaint was facially insufficient and did not make out a prima facie case to support the criminal charges against Edelstein.

41. The Honorable Craig S Walker ruled on said motion and on November 28, 2016, granted Edelstein's motion to dismiss, ruling that there was no evidence in the criminal court complaint, even if accepted as true, that Edelstein possessed the placard with intent to deceive or defraud. The court granted the Kings County District Attorney Office leave to cure the defect.

42. The Kings County District Attorney's Office did not cure the defect and on January 30, 2017 all criminal charges were dismissed against her.

43. On July 14, 2016 all criminal charges against Andujar were dismissed with an Adjournment in Contemplation of Dismissal at arraignment by Judge Leo.

44. When Edelstein got her vehicle back, it was returned damaged. The damage occurred while in police custody, and included a damaged rear bumper, cracked gps screen, dented side panel, and damaged cup holder and console.

44. After their arrest the defendant Rodriguez continued to harass, follow and intimidate plaintiff Edelstein.

45. On December 11, 2016 at approximately 1:40 a.m. Rodriguez stopped Edelstein while she was operating the aforementioned Jeep Cherokee vehicle in the vicinity of the aforementioned location. Rodriguez was in plain clothes and traveling alone and stopped at a light. Edelstein did not know Rodriguez was in the car in front of her. When his vehicle did not

move after the light turned green, Edelstein honked her horn, only to see Rodriguez exit his car and approach Edelstein's vehicle. Rodriguez demanded Edelstein's license and registration and ordered her out of the vehicle. The plaintiff had committed no crime and refused to exit, telling Rodriguez that she knew who he was and held up her cell phone to record the stop. Edelstein advised Rodriguez that she had a lawyer and was suing him and the city for his prior misconduct. Rodriguez attempted to open the door to Edelstein's vehicle but it was locked. Rodriguez eventually walked back to his car and a second officer shined a light into Edelstein's car and then he too walked away. No Summons was issued.

46. Upon information and belief prior to July 14, 2016, there were prior similar complaints and lawsuits filed against Rodriguez.

47. In the case of Morales and Angel v. Rodriguez et al, 14 CV 4911 it was alleged that Rodriguez and others approached Morales while he was sitting in a car and aggressively placed him under arrest. Angel, who had just come out of a nearby store, asked what's going on and was told to "shut the fuck up" and an officer took his hand, palmed her face and pushed her backwards. Angel was kicked while she was on the ground and assaulted.

48. In the matter of Webb v City of New York and Police Officer Pedro A. Rodriguez, 08 Cv 5145 it was alleged that on September 27, 2007 in the County of Kings, Webb observed Rodriguez and two other officers searching her grandson's glovebox. Webb approached the officers to determine why her grandson was being stopped and searched. Webb asked Rodriguez what her grandson had done and Rodriguez punched Webb in the stomach and pushed her backwards into a fence, requiring treatment at a hospital.

49. In the matter of Shears on behalf of infant Washington, against the City of New

York and Rodriguez et al 08 cv 4832, it was alleged that on September 29, 2007, Rodriguez used excessive force against Shameck, and that Rodriguez filed false criminal charges against Washington.

50. Despite knowledge of defendant Rodriguez' prior violations, actions, and complaints against him, the City continued to employ the defendant and assign him to work in a capacity for which he was unfit including on July 14, 2016 and all other times set forth in this complaint.

51. That notice of the plaintiff's claim and notice of intention to sue for damages, as well as a Supplemental Notices of Claim the nature of the claim and the date of, the time when, the place where and the manner in which the claim arose were duly served upon the comptroller of the defendant "City".

52. That a 50(h) hearing was scheduled and adjourned due to a conflict. That despite follow up letters requesting a new 50 h date for both plaintiffs, no date has been received and the City has waived its right to conduct a 50 h hearing.

53. That more than 30 days have elapsed since the notice of claim and intention to sue has been served upon the defendants and the said defendants have neglected or refused to make any adjustment or payment thereof.

54. That this action is commenced within one year and 90 days after the cause of action arose.

55. It is hereby alleged, pursuant to CPLR 1603, that this action is exempt from the operation of CPLR 1601 from the operation of CPLR 1601, by reason of one or more of the exemptions provided in CPLR 1602.

**AS AND FOR A FIRST AND SECOND CAUSES OF
ACTION ON BEHALF OF PLAINTIFFS EDELSTEIN AND ANDUJAR
FOR FALSE IMPRISONMENT AGAINST ALL DEFENDANTS**

56. The Plaintiffs repeat, reiterate and reallege each and every allegation contained in paragraphs marked "1" through "55" with the same force and effect as if more fully and at length set forth herein.

57. That beginning on or about the 14th day of July, 2016, at or about approximately 2:30 a.m. at or near the "location" until the plaintiff Edelstein's arraignment on July 15, 2016, and defendant Andujar's arraignment on July 14, 2016, the defendants, their agents, servants and/or employees detained and imprisoned plaintiffs without any just cause or grounds and against their wills.

58. That said imprisonment was caused by the defendants, their agents, servants, and/or employees, without any warrant or other legal process and without authority of the law and without any reasonable grounds, or cause to believe that either plaintiff was guilty of any crimes for which he or she was charged, and/or was the result of an illegal search, seizure and arrest.

59. The plaintiffs were wholly innocent of all criminal charges filed against them and did not contribute in any way or manner to his or her arrest and imprisonment by the defendants, their agents, servants and/or employees, and was forced to submit to the aforesaid arrest and imprisonment entirely against his and her wills.

60. That the defendants, their agents, servants and/or employees, as set forth above,

intended to confine the plaintiffs; the plaintiffs were conscious of the confinement; they did not consent to the confinement; and the confinement was not otherwise privileged.

61. That all said conduct was committed by Rodriguez, Hoe and/or Martin within the scope of their employment with the City of New York and/or the New York City Police Department.

62. That by reason of the aforesaid false imprisonment and detention, plaintiff Edelstein was subjected to great indignity, humiliation, pain, suffering and loss of freedom and the said plaintiff has been otherwise damaged.

63. That by reason of the aforesaid false imprisonment and detention, plaintiff Andujar was subjected to great indignity, humiliation, pain, suffering and loss of freedom and the said plaintiff has been otherwise damaged.

64. That by reason of the aforesaid, the plaintiffs each have been damaged in an amount exceeding the jurisdictional limits of the lower courts.

**AS AND FOR A THIRD AND FOURTH CAUSE OF
ACTION ON BEHALF OF THE PLAINTIFFS
FOR FALSE ARREST AGAINST THE NAMED DEFENDANTS**

65. The plaintiffs repeat, reiterate and reallege each and every allegation contained in paragraphs marked "1" through "64" with the same force and effect as if more fully and at length set forth herein.

66. That beginning on or about the 14th day of July, 2016, at or about approximately 2:30 a.m. at the "location", the plaintiffs were handcuffed and placed under arrest by the defendants, their agents, servants and/or employees without any just cause or grounds, and held

against his and/or her will under full force of arms.

67. That said arrests were caused by the defendants, their agents, servants, and/or employees, without any warrant or other legal process and without authority of the law and without any reasonable grounds, and based on an illegal stop and search of the plaintiffs, when the defendants lacked cause to believe that the plaintiffs committed, or was about to commit a crime or was guilty of any crimes.

68. The plaintiffs were wholly innocent of all criminal charges and did not contribute in any way or manner to his or her arrest and imprisonment by the defendants, their agents, servants and/or employees, and was forced to submit to the aforesaid arrest and imprisonment entirely against his and her wills.

69. That the defendants, their agents, servants, and/or employees, as set forth above, intended to seize, search, and arrest the plaintiffs; that the plaintiffs were conscious of their arrest and confinement; the Plaintiffs did not consent to the arrest and confinement; and the arrest was not otherwise privileged.

70. That all said conduct was committed by Rodriguez , Hue and/or Martin within the scope of their employment with the City of New York and/or the New York City Police Department.

71. That by reason of the aforesaid false arrest, plaintiff was subjected to great indignity, humiliation, stress and loss of freedom and each plaintiff has been otherwise damaged.

72. That by reason of the aforesaid, the plaintiffs have been damaged in an amount exceeding the jurisdictional limits of the lower courts.

AS AND FOR A FIFTH AND SIXTH CAUSES OF
ACTION ON BEHALF OF THE PLAINTIFFS
FOR ASSAULT AND BATTERY AGAINST THE DEFENDANTS

73. The Plaintiffs repeat, reiterate and re-allege each and every allegation contained in paragraphs marked "1" through "72" with the same force and affect as if more fully and at length set forth herein.

74. On July 14, 2016 at the location the plaintiffs were physically seized, searched, grabbed, handcuffed, threatened, mocked, denied water and physically touched by the defendant, "City", and the "NYPD" its agents/servants, and/or employees, including defendants Rodriguez, Hue and/or Martin.

75. That all said contact was committed without the plaintiffs permission or consent.

76. That all said contact was unlawful and without privilege.

77. That the use of force was without justification.

78. That no officer present intervened, stopped or mitigated the unlawful use of force against the plaintiffs

79. That all contact committed by defendants through their agents, servants, and/or employees, including defendants "Rodriguez", "Hue" and/or "Martin", was offensive to plaintiffs and caused them to fear further contact and imminent harm, and caused plaintiffs to sustain physical and/or psychological injury.

80. That all said conduct was committed by the named defendant police officers within the scope of their employment with the City of New York and/or the New York City Police Department.

81. That the above acts committed by the defendants constituted an assault and/or battery of the plaintiffs.

82. That by reason of the aforesaid, each plaintiff has been damaged in a sum exceeding the jurisdictional limits of lower courts.

AS AND FOR A SEVENTH CAUSE OF ACTION
ON BEHALF OF THE PLAINTIFF EDELSTEIN FOR PROPERTY DAMAGE

83. The Plaintiffs repeat, reiterate and re-allege each and every allegation contained in paragraphs marked "1" through "82" with the same force and affect as if more fully and at length set forth herein.

84. On JULY 14, 2016 when the defendants took custody and control of the plaintiff Edelstein's vehicle, , the vehicle was in good working order with no damage to the interior or exterior of the vehicle.

85. When the car was returned to the plaintiff it was damaged as set forth earlier in this Complaint.

86. Upon information and belief the damage was caused by the defendants by and through their agents, servants, and/or employees including the named defendant officers. Said damage to the vehicle was without the plaintiff's permission or consent

87. That all said conduct was unlawful and without privilege.

88. That the plaintiff, Edelstein, was damaged by the above acts committed by the defendants and is entitled to compensation for the repairs to the vehicle caused by such conduct.

AS AND FOR AN EIGHTH AND NINTH CAUSES OF ACTION
ON BEHALF OF THE PLAINTIFF FOR NEGLIGENCE AGAINST THE DEFENDANT
CITY OF NEW YORK

89. The Plaintiffs repeat, reiterate and re-allege each and every allegation contained in paragraphs marked "1" through "88" with the same force and affect as if more fully and at length set forth herein.

90. That the defendant, "City" was careless and/or negligent in hiring, retaining, training, assigning, failing to retrain, failing to reassign, in monitoring, supervising, investigating, disciplining and/or promoting as and for its employees, defendants "Rodriguez", "Hoe", and/or "Martin", in that said employee(s) lacked the experience, deportment and ability to be employed by the defendants in the capacity in which they were utilized on the date and time set forth in this complaint, i.e. as police officers; in that the defendant, "City" failed to exercise due care and caution in its hiring and promoting practices; in that the defendant "City" failed to investigate the above named employee's backgrounds; in that the City failed to properly train, supervise and monitor the 'officers; and in that that the defendant City was negligent in disciplining, retraining and retaining the named defendant officers;' and in that the defendants, their agents, servants and employees, were otherwise careless, negligent and reckless.

91. That upon information and belief the City by and through its agents had received numerous civilian complaints and/or lawsuits, against defendants "Rodriguez", "Hoe" and/or "Martin", collectively referred to as the "officers" prior to the stop, seizure, search, discourtesy, fabrication of evidence and assault and battery of plaintiffs on July 14, 2016.

92. That the 'officers', the while acting within the scope of their employment, were negligent in that each failed to use such care in the performance of his police duties as a reasonably prudent and careful police officer would have used under similar circumstances; in

that each was negligent, careless and reckless in the manner in which they investigated and/or performed his police duties; in that they failed to intervene or mitigate police misconduct; in that the police department permitted or condoned the false arrest, and/or false documentation submitted by these and other officers; and in that they failed to timely notify the Kings County District Attorney's Office of exculpatory information; and in that the defendants, their agents, servants and/or employees were otherwise careless, reckless and negligent.

93. That the aforesaid occurrence, to wit: seizure, search, arrest, imprisonment, assault and battery, property damage, sexual harassment of Edelstein, malicious prosecution, and the resulting injuries to mind and body therefrom, were caused wholly and solely by reason of the negligence of the defendants, its agents, servants and/or employees including defendants "officers" without any negligence on the part of the plaintiff contributing thereto.

94. That by reason of the aforesaid, the plaintiffs were imprisoned, lost his and her freedom, was injured and stressed, and he and she was thereby damaged.

95. That by reason of the aforesaid, the plaintiffs have been damaged in a sum exceeding the jurisdictional limits of the lower court.

AS AND FOR A TENTH AND ELEVENTH CAUSES OF ACTION:
FOR VIOLATIONS OF PERSONAL CONSTITUTIONAL RIGHTS UNDER
42 U.S.C. 1983 and 1988 AGAINST THE CITY OF NEW YORK

96. That plaintiffs repeat, reiterate and reallege each and every allegation contained in paragraphs marked "1" through "95" with the same force and effect as if more fully and at length set forth herein.

97. That on or about the 14th day of July, 2016 at or about approximately 2:30 a.m. at

the “location” the “officers” were present thereat as part of their regular and official employment as police officers for the defendant, “City”.

98. The Plaintiff was lawfully and properly thereat, when the “officers” acting as agents, servants and/or employees of the defendant “City”, and within the scope of their employment and pursuant to their training, and/or the customs, rules and practices of the City and/or NYPD, forcibly stopped, seized and searched the plaintiffs and their vehicle absent just cause, provocation or reason. The plaintiffs had not engaged in any criminal conduct or suspicious activity.

99. Upon information and belief the officers fabricated a reason for stopping and searching the plaintiffs and their vehicle.

100. Upon information and belief the officers fabricated the evidence that they allegedly recovered from the vehicle.

101. Further the officers present at the plaintiff’s arrest failed to report the false arrest.

102. The City had received Edelstein’s Notice of Claim and at a minimum was aware of her claims against Rodriguez when, on December 11, 2016 at approximately 1:40 a.m. Rodriguez stopped Edelstein while she was operating the aforementioned Jeep Cherokee vehicle.

103. Rodriguez, acting with intent to threaten and intimidate the plaintiff proceeded to exit his car and approach Edelstein’s vehicle. Rodriguez, without reason or cause, demanded Edelstein’s license and registration and ordered her out of the vehicle. The plaintiff had committed no crime and refused to exit, telling Rodriguez that she knew who he was and held up her cell phone to record the stop. Edelstein advised Rodriguez that she had a lawyer and was suing him and the city for his prior misconduct. Rodriguez attempted to open the door to

Edelstein's vehicle but it was locked. Rodriguez eventually walked back to his car and a second officer shined a light into Edelstein's car and then he too walked away. No Summons was issued, but plaintiff was clearly threatened by this conduct.

104. Upon information and belief to date no disciplinary action has been taken against the offending officers for engaging in said conduct or for failing to intervene, stop it or report it.

105. That in order to cover up their misconduct the officers, individually and/or collectively conspired to file false police reports, voucher false evidence, give false statements and/or sign a false criminal court complaint, harass and intimidate witnesses for the purpose of falsely imprisoning, falsely arresting and/or maliciously prosecuting the plaintiffs.

106. That said acts constituted an illegal seizure of the plaintiffs and deprived plaintiffs of his and her rights and liberties as set forth in the 4th and 14th Amendments of the Constitution of the United States and of the State of New York and under 42 U.S.C. Section 1983 and/or 1986.

107. That said acts constituted acts of illegal search and seizure, fabricating evidence, filing false reports and giving false statements, threats, intimidation and failure to record exculpatory evidence and thereby deprived plaintiff of his or her rights and liberties as set forth in the 4th, 5th and 14th Amendments of the Constitution of the United States and of the State of New York and under 42 U.S.C. Section 1983, 1985 and/or 1986.

108. That the officers conspired by and through their conduct, including among other things their overt acts, their failure to intervene, stop, and report, and the falsification of reports and evidence, to deprive or hinder the plaintiffs respective right to justice, and to injure him or her.

109. Upon information and belief the City was on notice of the defendant officers history of illegal stop, search and seizure, discourtesy, threats, false arrests, filing false police reports and general misconduct, but acted with deliberate indifference thereto and continued to not only employ said officers but failed to retrain, discipline, supervise or monitor the officers conduct, thereby acting with deliberate indifference to their acts and conduct.

110. The City has acted with deliberate indifference to its hiring, screening training, review and oversight practices including providing any meaningful periodic review, in service review and training refreshers, testing of knowledge of the law and police guidelines, psychological testing for suitability for job and assignment, disciplinary procedures and punishment and monitoring, including but not limited to failure to address CCRB, IAB complaints and lawsuits filed when reviewing the officers performance.

111. That the City's deliberate indifference in the need to train, retrain, fire, supervise, re-assign, discipline, exercise quality control, adequately punish and investigate, review arrests, have meaningful checks and balances, lead to a custom, policy or practice wherein there was little if no meaningful oversight or consequences for violating police guidelines, for violating the law, for failing to intervene, mitigate or report, misconduct, including misconduct such as was inflicted upon the plaintiff.

112. That said deliberate indifference to the practices of New York City Police Officers including the named defendant officers, lead to a culture within the New York City Police Department that resulted in the illegal stop and search of the plaintiffs, the use of force against the plaintiffs, the search of Edelstein's vehicle, the conspiracy to hide or destroy and/or falsify evidence, filing false reports, omitting required reports, threats, vulgarity and

discrimination.

113. That the failure to discipline, punish, investigate, reassign, fire, retrain, test gave officers tacit approval that their conduct was either condoned or would go unpunished. That fact that officers who engaged in said conduct were promoted only provided further evidence to their underlings that there was a code of silence, or “brotherhood of blue”, and that transgressions should not be reported or the reporter would be deemed a persona non grata, or worse a “rat”.

114. Upon information and belief the City’s deliberate indifference to the unconstitutional practices of its employees, and in particular the named defendant officers, and the need for review and reformation was a contributing proximate cause of the plaintiff’s injuries

115. That said deliberate indifference to the need to:

- a. train officers in search and seizure laws, stop and inquire, probable cause, use of force, and duty to intervene and report,
- b. to grade and test to see if officers mastered legal and tactical concepts
- c. to ensure that each officer reads and understands legal bulletins provided
- d. to provide officers with situational training for use of force
- e. properly discipline officers who fail to follow police and administrative guidelines,
- f. track, discipline, monitor, retrain and reassign officers who have questionable stop and frisk practices, use of force complaints, complaints of witness intimidation, providing false statements, among other violations, as reported by number of citizen complaints, notices of claim, lawsuits and/or dismissals of their arrests and summons and complaints of fellow officers, including data contained in unsubstantiated CCRB or IAB investigations

- g. to retest officers knowledge of patrol guidelines when they are out of the academy
- h. to provide situational simulations and to grade the officers performance, and not pass the officer until he or she has demonstrated adequate proficiency
- i. to discipline officers who fail to report non-compliant officers or who engage in a conspiracy of silence
- j. reassign officers who have a high number of complaints, lawsuits and/or investigations against them
- k. hold on scene supervisors responsible for the enforcement of New York City Patrol Guildelines,
 - l. to hold officers responsible for failing to fill out stop and frisk reports

116. Upon information and belief the City was aware that the NYPD customs, policies and procedures, as well as their deliberate indifference to the unconstitutional applications of their customs, policies and procedures, and need for reformation of its training, oversight, analysis, supervision, monitoring, disciplining and review would lead to constitutional violations of its citizenry, and did lead to said violations of the plaintiffs' constitutional rights on July 14, 2016.

117. Upon information and belief, police officers are rarely prosecuted, disciplined or investigated for providing false statements, filing false reports, failing to intervene or report misconduct, and/or making false arrests.

118. The officers conduct described herein served to conspire to deprive the plaintiffs of evidence, of a fair trial, of witnesses, and of equal protection of the law and substantive due process. The City's deliberate indifference to their conduct made such violations possible.

119. That the plaintiffs false arrest, assault and battery, and malicious prosecution (Edelstein) and violation of his or her constitutional rights resulted from the defendant City's practices, policies and/or customs, and/or their deliberate indifference to patterns and /or police practices which included excessive use of force; illegal use of police equipment; failing follow police guidelines; failing to monitor or discipline police misconduct; failing to gather evidence when allegations of police misconduct are involved; condoning a code of silence within the police department regarding misconduct; filing resisting arrest charges to cover up illegal use of force by police; engaging in racial profiling; failing to properly supervise, train, investigate or discipline officers; engaging in illegal stop question and frisks, permitting or condoning illegal search and seizure of property and persons, any and /or all of the above contributing to plaintiff's false arrest, and prosecution, and injuries.

120. Defendants actions on at all times set forth in this complaint were performed under the color of law and the policies, statues, ordinances, rules, practices and regulations of the City of New York, and they were performed to the detriment of the plaintiffs.

121. The plaintiffs did not commit any illegal act, either before or at the time he or she was falsely arrested and imprisoned, assaulted, battered, and deprived of his or her constitutional rights as set forth in the Constitution of the United States, particularly 42 U.S.C. §1983, 1985 and 1986 and the Constitution of the State of New York.

122. That by reason of the aforesaid, the plaintiffs were deprived liberty, lost income, were assaulted, injured, maliciously prosecuted (Edelstein) , and were damaged.

123. That by reason of the aforesaid, the plaintiff has been damaged in a sum exceeding the jurisdictional limits of the lower court and seeks compensatory and punitive

damages, costs, attorneys fees, and expert fees as provided by 42 U.S.C. Sections 1983 and 1988, and such other relief as to the court may seem just and proper .

AS AND FOR A TWELFTH AND THIRTEENTH CAUSE OF ACTION:
ALLEGING VIOLATION OF CONSTITUTIONAL RIGHTS
UNDER 42 U.S.C. SECTIONS 1983 AND 1988 BY POLICE OFFICER RODRIGUEZ IN
HIS INDIVIDUAL CAPACITY
AND AS AGENT OF THE CITY OF NEW YORK, THE PLAINTIFFS ALLEGE:

124. That plaintiffs repeat, reiterate and reallege each and every allegation contained in paragraphs marked "1" through "123" with the same force and effect as if more fully and at length set forth herein.

125. That at all times hereinafter mentioned, the defendant "Rodriguez" was employed by the defendant The City of New York and/or The New York City Police Department and was acting under the color of his official capacity and his acts were performed under the color of the policies, statutes, ordinances, rules and regulations of the City of New York.

126. That at all times hereinafter mentioned, the defendant Rodriguez was acting pursuant to orders and directives from defendant, The City of New York.

127. That during all times hereinafter mentioned, the defendant "Rodriguez", individually, and/or collectively with others acted under color and pretense of law, to wit: under color of the statutes, ordinances, regulations, customs and usages of The City of New York and/or New York City Police Department, and engaged in the illegal conduct set forth this complaint to the injury of the plaintiffs, and deprived plaintiffs of their rights, privileges and immunities secured to him/her by the Fourth, and Fourteenth Amendments to the Constitution of the United States and the laws of the United States, and State of New York and/or 42 U.S.C.

Sections 1983.

128 That the unlawful and illegal conduct of defendant Rodriguez deprived plaintiff, Edelstein, of the following rights, privileges and immunities secured to her by the Constitution of the United States and of the State of New York:

- a) The right of plaintiff to be secure in her person and effects against unreasonable search and seizure under the Fourth and Fourteenth Amendments to the Constitution of the United States; and,
- b) The right not to be discriminated against based upon the plaintiff's race, creed, sex, or sexual orientation.
- c) The right to Due Process Law.
- d) The right to equal protection under the law.
- e) The right not to be subjected to cruel and unusual punishment
- f) The right to a fair trial

129 That the unlawful and illegal conduct of defendant Rodriguez deprived plaintiff, Andujar, of the following rights, privileges and immunities secured to him by the Constitution of the United States and of the State of New York:

- a) The right of plaintiff to be secure in his person and effects against unreasonable search and seizure under the Fourth and Fourteenth Amendments to the Constitution of the United States; and,
- b) The right not to be discriminated against based upon the plaintiff's race, creed, sex, or sexual orientation.
- c) The right to Due Process Law.

- d) The right to equal protection under the law.
- e) The right to a fair trial

130. That by reason of the aforesaid violations, resulting in the use of force, illegal search and seizure of plaintiffs persons and property, damaging property, false arrest and false imprisonment, assault and battery, falsifying evidence and providing false statements, harassment, sexual harassment, discrimination and malicious prosecution, denial of a fair trial, failure to intervene, mitigate and prevent, and conspiracy to commit the above, the defendant "Rodriguez" violated plaintiffs' rights and privileges as provided to him/her in the Constitution of the United States of America, and provided to him/her in the Constitution of the State of New York, and laws thereto, "the officers" and violated 42 U.S.C. §1983..

131. That by reason of the aforesaid, plaintiffs were arrested, imprisoned, injured in mind and body, property confiscated and damaged, and suffered physical and mental pain.

132. That by reason of the aforesaid, each plaintiff has been damaged in a sum of exceeding the jurisdiction of the lower courts, and seeks compensatory damages, plus, punitive damages, costs, attorneys fees, expert fees, as set forth and provided by 42 U.S.C. Sections 1983 and 1988, and such other relief as to the court may seem just and proper.

AS AND FOR A FOURTEENTH AND FIFTHTEENTH CAUSES OF ACTION:
ALLEGING VIOLATION OF CONSTITUTIONAL RIGHTS
UNDER 42 U.S.C. SECTIONS 1983 AND 1988 BY POLICE OFFICER HOE IN HIS
INDIVIDUAL CAPACITY
AND AS AGENT OF THE CITY OF NEW YORK, THE PLAINTIFFS ALLEGE:

133. That plaintiffs repeat, reiterate and reallege each and every allegation contained in

paragraphs marked "1" through "132" with the same force and effect as if more fully and at length set forth herein.

134. That at all times hereinafter mentioned, the defendant "Hoe" was employed by the defendant The City of New York and/or The New York City Police Department and was acting under the color of his official capacity and his acts were performed under the color of the policies, statutes, ordinances, rules and regulations of the City of New York.

135. That at all times hereinafter mentioned, the defendant Hoe was acting pursuant to orders and directives from defendant, The City of New York.

136. That during all times hereinafter mentioned, the defendant "Hoe", individually, and/or collectively with others acted under color and pretense of law, to wit: under color of the statutes, ordinances, regulations, customs and usages of The City of New York and/or New York City Police Department, and engaged in the illegal conduct set forth this complaint to the injury of the plaintiffs, and deprived him/her of the rights, privileges and immunities secured to him/her by the Fourth, and Fourteenth Amendments to the Constitution of the United States and the laws of the United States, and State of New York and/or 42 U.S.C. Section 1983.

137 That the unlawful and illegal conduct of defendant "Hoe" deprived plaintiffs of the following rights, privileges and immunities secured to them by the Constitution of the United States and of the State of New York:

a) The right of each plaintiff to be secure in his/her person and effects against unreasonable search and seizure under the Fourth and Fourteenth Amendments to the Constitution of the United States; and,

b) The right not to be discriminated against based upon the plaintiff's race,

creed, sex, or sexual orientation.

- c) The right to Due Process Law.
- d) The right to equal protection under the law.
- e) The right to a fair trial

138. That by reason of the aforesaid violations, use of force, seizure of plaintiffs persons and property, his and her false arrest and false imprisonment, assault and battery, falsifying evidence, filing false police reports;, discrimination and malicious prosecution, denial of right to a fair trial, failure to intervene, mitigate and prevent, and/or the conspiracy to commit the above the defendant "Hoe" violated plaintiffs rights and privileges as provided to them in the Constitution of the United States of America, and provided to them in the Constitution of the State of New York, and laws thereto, "the officers" and violated 42 U.S.C. §1983.

139. That as a direct proximate result of "Hoe's" actions and/or inaction to prevent, the plaintiff, Edelstein was physically and emotionally injured, lost her liberty, was required to hire legal counsel, her property confiscated and damaged, was harassed sexually and emotionally, and was subjected to great indignities and humiliation, and pain and distress of mind and body.

140. That as a direct proximate result of "Hoe's" actions and/or inaction to prevent, the plaintiff, Andujar was emotionally injured lost his liberty, was required to hire legal counsel, and was subjected to great indignities and humiliation, and pain and distress of mind and body.

141. That by reason of the aforesaid, each plaintiff has been damaged in a sum of exceeding the jurisdiction of the lower courts, and seeks compensatory damages, plus, punitive

damages, costs, attorneys fees, expert fees, as set forth and provided by 42 U.S.C. Sections 1983 and 1988, and such other relief as to the court may seem just and proper.

AS AND FOR A SIXTEENTH AND SEVENTEENTH CAUSES OF ACTION:
ALLEGING VIOLATION OF CONSTITUTIONAL RIGHTS
UNDER 42 U.S.C. SECTION 1983 AND 1988 BY MARTIN IN HIS INDIVIDUAL
CAPACITY
AND AS AGENT OF THE CITY OF NEW YORK, THE PLAINTIFFS ALLEGE:

142. That plaintiffs repeat, reiterate and reallege each and every allegation contained in paragraphs marked "1" through "141" with the same force and effect as if more fully and at length set forth herein.

143. That at all times hereinafter mentioned, the defendant "Martin" was employed by the defendant The City of New York and/or The New York City Police Department and was acting under the color of his official capacity and his acts were performed under the color of the policies, statutes, ordinances, rules and regulations of the City of New York.

144. That at all times hereinafter mentioned, the defendant Martin, individually and collectively with the other named officers and others, was acting pursuant to orders and directives from defendant, The City of New York.

145 That during all times hereinafter mentioned, the defendant Martin individually, and/or together with others, acted under color and pretense of law, to wit: under color of the statutes, ordinances, regulations, customs and usages of The City of New York and/or New York City Police Department, acted and conspired to engage in the illegal conduct set forth this complaint to the injury of the plaintiffs, and deprived him and her of the rights, privileges and immunities secured to him and her by the Fourth and Fourteenth Amendments to the Constitution of the United States and the laws of the United States, and State of New York.

146 That the unlawful and illegal conduct of defendant “Martin” deprived plaintiffs of the following rights, privileges and immunities secured to them by the Constitution of the United States and of the State of New York:

- a) The right of each plaintiff to be secure in his/her person and effects against unreasonable search and seizure under the Fourth and Fourteenth Amendments to the Constitution of the United States; and,
- b) The right not to be discriminated against based upon the plaintiff’s race, creed, sex, or sexual orientation.
- c) The right to Due Process Law.
- d) The right to equal protection under the law.
- e) The right to a fair trial

147. That by reason of the aforesaid violations, use of force, seizure of plaintiffs persons and property, his and her false arrest and false imprisonment, assault and battery, falsifying evidence, filing false police reports,, discrimination and malicious prosecution, denial of right to a fair trial, failure to intervene, mitigate and prevent, and/or the conspiracy to commit the above the defendant “Martin” violated plaintiffs rights and privileges as provided to them in the Constitution of the United States of America, and provided to them in the Constitution of the State of New York, and laws thereto, “the officers” and violated 42 U.S.C. §1983.

148. That as a direct proximate result of “Martin’s” actions and/or inaction to prevent, the plaintiff, Edelstein was physically and emotionally injured, lost her liberty, was required to hire legal counsel, her property confiscated and damaged, was harassed sexually and emotionally, and was subjected to great indignities and humiliation, and pain and distress of

mind and body.

149. That as a direct proximate result of “Martin’s” actions and/or inaction to prevent, the plaintiff, Andujar was emotionally injured lost his liberty, was required to hire legal counsel, and was subjected to great indignities and humiliation, and pain and distress of mind and body.

150. That by reason of the aforesaid, each plaintiff has been damaged in a sum of exceeding the jurisdiction of the lower courts, and seeks compensatory damages, plus, punitive damages, costs, attorneys fees, expert fees, as set forth and provided by 42 U.S.C. Sections 1983 and 1988, and such other relief as to the court may seem just and proper.

AS AND FOR AN EIGHTEENTH CAUSE OF ACTION ON BEHALF OF THE
PLAINTIFF EDELSTEIN AGAINST THE DEFENDANTS FOR MALICIOUS
PROSECUTION

151. The Plaintiff, Edelstein repeats, reiterates and realleges each and every allegation contained in paragraphs marked "1" through "150" with the same force and effect as if more fully and at length set forth herein.

152. Upon information and belief the defendants filled out false police reports, signed false criminal court complaint and corroborating affidavits against Edelstein for the purpose of prosecuting her for crimes set forth above they knew that the plaintiff did not commit, and for evidence that the defendants recovered in violation of the plaintiff’s civil rights.

153. The defendants took such actions, knowingly and with a malicious disregard for the truth, and did so with the intent to cover up the illegal arrest of the plaintiff, Edelstein, and the injuries that she sustained at the hands of the police.

154. The plaintiff was at all times innocent of any crime charged.

155. That due to the malicious prosecution the plaintiff was caused to spend money to obtain legal counsel and attend and appear at Kings County Criminal Court to defend herself against the false criminal charges.

156. All criminal charges were dismissed against the plaintiff.

157. That by reason of the aforesaid malicious prosecution, the plaintiff has been damaged in a sum exceeding the jurisdictional limits of the lower courts.

AS AND FOR A NINETEENTH CAUSE OF ACTION ON BEHALF OF THE
PLAINTIFF EDELSTEIN AGAINST THE DEFENDANTS FOR PROPERTY
DAMAGE

158. The Plaintiff, Edelstein repeats, reiterates and realleges each and every allegation contained in paragraphs marked "1" through "157" with the same force and effect as if more fully and at length set forth herein.

159. Upon information and belief the defendants confiscated and took custody and control of the plaintiff, Edelstein's vehicle, a 2015 Jeep Cherokee on the aforementioned date, time and location..

160. Upon information and belief the defendants engaged in an unlawful search of the vehicle and damaged the plaintiff's property as set forth in this complaint.

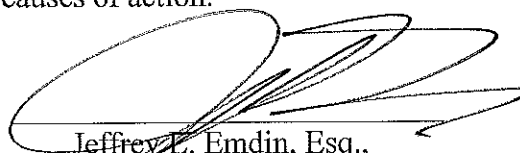
161. The plaintiff's vehicle was returned to her in a damaged condition requiring repairs as a result of the defendants' conduct.

162. That by reason of the above the plaintiff has been damaged and seeks damages for the illegal confiscation of the vehicle and the damage caused to it while in their care, custody and

possession.

WHEREFORE, the plaintiffs demand judgment against the defendants in a sum to be determined by the trier of fact, plus costs, attorney's fees, punitive damages (on the sixth through eighteenth causes of action) and such other and further relief as to the Court seems just and proper on the First through the Nineteenth causes of action.

DATED: New York, New York
August 7, 2017



Jeffrey L. Emdin, Esq.,
Emdin & Russell, LLP.
Attorneys for the plaintiffs
499 Seventh Avenue, Floor 12N
New York, New York 10018
(212) 683-3995

ATTORNEY'S VERIFICATION

The undersigned, an attorney admitted to practice in the Courts of the State of New York certifies as follows:

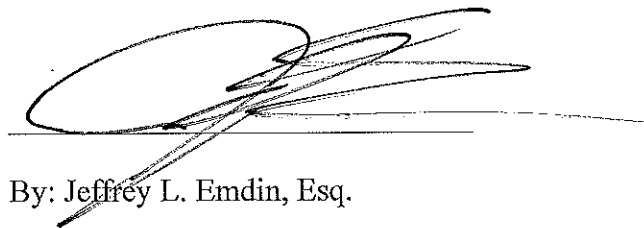
That I am an attorney associated with the law firm of Jeffrey L. Emdin, Esq., the attorneys of record for the Plaintiffs in the within action; that I have read the foregoing Summons and Complaint and know the contents thereof; that the same is true to my own knowledge, except as to the matters therein stated to be alleged on information and belief, and that as to those matters, I believe them to be true.

The undersigned further states that the reason this Summons and Complaint is made by me and not by the Plaintiffs is that the Plaintiffs do not reside within the county in which my office is located.

The grounds of my belief as to all matters stated upon my knowledge are my interviews with the Plaintiffs and a reading of the documents in my case file.

The undersigned affirms that the foregoing statements are true, under the penalty of perjury.

Dated: New York, New York
August 7, 2017



By: Jeffrey L. Emdin, Esq.

INDEX NO.:

SUPREME COURT OF THE STATE OF NEW YORK
COUNTY OF KINGS

REBECCA EDELSTEIN and JANCAIRO ANDUJAR
Plaintiffs,

-against-

THE CITY OF NEW YORK, NEW YORK CITY POLICE DEPARTMENT, POLICE
OFFICER DANIEL A MARTIN, SHIELD # 16213, INDIVIDUALLY AND AS A POLICE
OFFICER, POLICE OFFICER PEDRO RODRIGUEZ, SHIELD# 28987, INDIVIDUALLY
AND AS A POLICE OFFICER, and POLICE OFFICER HOE, SHIELD # 3915,
INDIVIDUALLY AND AS A POLICE OFFICER,
Defendants.

SUMMONS WITH VERIFIED COMPLAINT

LAW OFFICES OF EMDIN & RUSSELL, LLP
Attorneys for Plaintiffs
499 Seventh Avenue, Floor 12N
New York, NY 10018
(212) 683-3995

To: Corporation Counsel, The New York City Police Department
c/o City of New York 1 Police Plaza
100 Church Street New York, New York 10038
New York, New York 10007

Police Officer Daniel A Martin
Shield # 16213
c/o 72nd pct.Police Officer Pedro Rodriguez
Shield # 28987
c/o 72nd pct.Police Officer Hoe
Shield # 3915
c/o 72nd pct.

Pursuant to 22 NYCRR 130-1.0, the undersigned, an attorney admitted to practice in the courts of New
York State, certifies that, upon information and belief and reasonable inquiry, the contentions contained
in the annexed document are not frivolous.

Dated: July 4, 2017

Signature

Jeffrey L. Emdin, Esq.

PLEASE TAKE NOTICE

- ☐ NOTICE OF ENTRY
that the within is a (certified) true copy of a duly entered in the office of the
clerk of the within named court on
- ☐ NOTICE OF SETTLEMENT
that a of which the within is a true copy
will be presented for settlement to the HON. one of the judges of the, on